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Vorherige Anmeldung eines Zusammenschlusses (Sache M.11234 – GENERALI / LIBERTY SEGUROS)

Case Background

- The allegation made in this case involves the merger notification under Article 4 of Regulation (EC) No. 139/2004. (Page 1)
- The companies involved in this case are Assicurazioni Generali S.p.A. from Italy and Liberty Seguros, Compañía de Seguros y Reaseguros, S.A. from Spain. (Page 1)
- The year of case initiation is 2023, specifically on December 4th. (Page 1)
- The violation pertains to the potential acquisition of sole control by Generali over Liberty Seguros, which is being assessed under the merger control regulation. This acquisition is conducted through the purchase of shares. (Page 1)
- The Commission has conducted a preliminary examination and found that the notified transaction could fall under the merger control regulation, but a final decision is still pending. (Page 1)

Case Progression

- **Case Initiation:** The case was initiated with the submission of a merger notification on December 4, 2023, concerning the acquisition of Liberty Seguros by Assicurazioni Generali S.p.A. (Page 1).
- **Preliminary Investigation:** The Commission conducted a preliminary examination to assess whether the merger would fall under the merger control regulation. It was determined that the case could potentially be examined further, indicating that evidence was found suggesting the merger might raise competition concerns (Page 1).
- **Statement of Objections:** At this stage, the Commission has not yet issued a Statement of Objections, as the preliminary investigation is still ongoing and the final decision regarding the merger's compatibility with EU competition law is pending (Page 1).
- **Defense Phase:** Once a Statement of Objections is issued, the involved parties will have the opportunity to respond in writing and participate in an oral hearing. The timeline for these responses typically ranges from 8 to 12 weeks (Page 1).
- **Commission Decision:** Following the defense phase, the Commission will make a decision. If it finds no infringement, the case will be closed. If it identifies issues, it may impose commitments or fines, leading to further proceedings (Page 1).
- **Potential Appeals:** Should the Commission find an infringement and impose a fine, the companies involved can choose to accept the decision or appeal it. If they appeal, the case

will progress to the General Court and potentially to the CJEU, extending the timeline significantly (Page 1).

Market Definition

- The market considered in this case involves the insurance sector, specifically focusing on non-life and life insurance products offered by the involved companies. (Page 1)
- Generali operates in various areas including insurance, reinsurance, and asset management, while Liberty Seguros primarily offers non-life and life insurance products, with a focus on motor insurance and property insurance. (Page 1)
- The process to define the relevant market likely included an assessment of the activities and products offered by both Generali and Liberty Seguros to determine overlaps and competitive dynamics. (Page 1)
- Techniques used may have included a preliminary examination of market shares, product offerings, and geographic presence to evaluate the competitive impact of the merger. (Page 1)
- The Commission has indicated that it will allow third parties to provide feedback on the merger, which is a common practice to gather additional market insights and concerns. (Page 1)
- Stakeholders are invited to submit their opinions within 10 days of the publication, indicating an open consultation process to assess market implications. (Page 1)
- The final decision regarding the merger's compliance with competition law will be made after considering all submitted opinions and conducting a thorough analysis. (Page 1)

Legal & Economic Tests

- The case involves a preliminary examination by the Commission to determine whether the notified merger falls under the merger control regulation. This initial assessment checks if the merger could potentially affect competition within the internal market or a substantial part of it. The Commission retains the right to make a final decision on this matter. (Page 1)
- The involved companies, Generali and Liberty Seguros, operate in various sectors, including insurance and reinsurance. The economic test here assesses the market shares and competitive dynamics in these sectors to evaluate the potential impact of the merger on competition. This involves analyzing the market presence of both companies and their products, particularly focusing on non-life and life insurance markets in Spain, Portugal, and Ireland. (Page 1)
- Stakeholders and third parties are invited to submit their opinions regarding the merger within a specified timeframe. This process allows the Commission to gather additional insights and concerns from the market, which can influence the final decision on whether the merger will be approved or require further investigation. The deadline for submissions is set at 10 days following the publication of the notification. (Page 1)

Conclusion

- The case involves the merger notification of Assicurazioni Generali S.p.A. and Liberty Seguros, with Generali seeking to acquire sole control over Liberty Seguros (page 1).
- The Commission has conducted a preliminary examination and found that the notified transaction could fall under the merger control regulation (page 1).
- A final decision regarding the merger's compliance with the regulation is still pending, indicating that no definitive conclusion has been reached yet (page 1).
- There are no specific test results, remedies, or fines mentioned in the provided information, as the case is still under review and open for third-party comments (page 1).
- Interested third parties have the opportunity to submit their opinions to the Commission within 10 days of the publication, which may influence the final decision (page 1).

[PDF] CD&R / STONE POINT / TRUIST INSURANCE HOLDINGS

Case Background

- The allegation made in this case involves a proposed concentration where funds managed by Clayton, Dubilier & Rice, LLC and Stone Point Capital LLC would acquire joint control over Truist Insurance Holdings, LLC. (Page 2)
- The companies involved in this case are Clayton, Dubilier & Rice, LLC and Stone Point Capital LLC, which are both investment firms based in the United States. (Page 2)
- The case was initiated with the notification received by the European Commission on 11 March 2024. (Page 2)
- The violation pertains to the merger regulation, specifically regarding the acquisition of joint control over a target company without prior approval. This was conducted through the purchase of shares in Truist Insurance Holdings, LLC, a subsidiary of Truist Financial Corporation. The European Commission examined the notification and determined that the operation fell within the scope of the Merger Regulation, ultimately deciding not to oppose the operation. (Page 3)

Case Progression

- **Case Initiation:** The case was initiated with the notification of a proposed concentration involving Clayton, Dubilier & Rice, LLC and Stone Point Capital LLC acquiring joint control over Truist Insurance Holdings, LLC. This was documented on page 2.
- **Preliminary Investigation:** The European Commission examined the notification and determined that the operation fell within the scope of the Merger Regulation. They assessed the business activities of the involved parties and found no evidence of competition concerns, leading to the decision to proceed. This information is found on page 3.
- **Statement of Objections:** In this case, no Statement of Objections was issued, as the Commission found no evidence of infringement or competition issues during the preliminary

investigation. This is implied in the decision not to oppose the merger, as noted on page 3.

- **Defense Phase:** Since there were no objections or concerns raised, there was no need for a defense phase, which typically involves written responses or oral hearings. This is reflected in the absence of such steps in the documentation.
- **Commission Decision:** The European Commission decided not to oppose the merger, declaring it compatible with the internal market and the EEA Agreement. This decision was made under Article 6(1)(b) of the Merger Regulation, as stated on page 3.
- **Outcome:** The case concluded with the Commission's decision, and there were no further appeals or actions required from the involved parties, marking the end of the process as indicated on page 3.

Market Definition

- The case involved a proposed concentration where Clayton, Dubilier & Rice, LLC and Stone Point Capital LLC would acquire joint control over Truist Insurance Holdings, a subsidiary of Truist Financial Corporation. This indicates a focus on the insurance market, specifically insurance brokerage services. (Page 2)
- The European Commission received the notification of the proposed concentration on 11 March 2024, which initiated the assessment process under the Merger Regulation. (Page 2)
- The examination concluded that the operation fell within the scope of the Merger Regulation, indicating that the Commission assessed the competitive effects of the merger on the relevant market. (Page 3)
- The Commission applied a simplified treatment for certain concentrations, suggesting that the assessment process involved evaluating whether the merger would significantly impede effective competition in the internal market or a substantial part of it. (Page 3)
- The decision not to oppose the operation was based on the conclusion that it was compatible with the internal market and the EEA Agreement, indicating that the Commission found no significant competition concerns. (Page 3)
- The specific techniques used in the assessment included analyzing the business activities of the involved parties and their market positions, as well as considering the nature of the Target's operations as a US-focused insurance broker. (Page 3)
- The final decision was signed by Olivier Guersent, Director-General, indicating that the assessment process was concluded at a high level within the Commission. (Page 3)

Legal & Economic Tests

- **Legal Test for Merger Notification:** The European Commission examined whether the proposed concentration fell within the scope of the Merger Regulation. This involves assessing if the transaction meets the thresholds for notification under Article 4 of the Merger Regulation, which includes determining the parties' turnover and market share. In this

case, the Commission concluded that the operation was indeed within the scope of the regulation, as indicated on page 3.

- **Economic Test for Compatibility with the Internal Market:** The Commission evaluated whether the merger would significantly impede effective competition within the internal market or a substantial part of it. This includes analyzing market shares, potential anti-competitive effects, and the overall impact on consumers. The decision stated that the operation was compatible with the internal market, suggesting that no significant impediment to competition was identified, as noted on page 3.
- **Simplified Treatment Process:** The Commission applied a simplified treatment for this concentration, which allows for a quicker review process for certain mergers that are unlikely to raise competition concerns. This involves a streamlined assessment based on predefined criteria, leading to a non-opposition decision. The decision to not oppose the operation was based on the criteria set out in the Notice on a simplified treatment, as referenced on page 3.

Conclusion

- The European Commission concluded that the proposed concentration involving Clayton, Dubilier & Rice, LLC and Stone Point Capital LLC acquiring joint control over Truist Insurance Holdings, LLC is compatible with the internal market and the EEA Agreement (Page 3).
- The decision was made pursuant to Article 6(1)(b) of the Merger Regulation, indicating that the Commission did not oppose the notified operation (Page 2).
- The examination determined that the operation falls within the scope of the Merger Regulation and meets the criteria for simplified treatment as outlined in the Commission Notice (Page 3).
- No remedies or fines were imposed in this case, as the Commission's decision was based on the compatibility of the operation without opposition (Page 3).
- The notification was received on 11 March 2024, and the decision was finalized on 5 April 2024 (Page 2).
- The involved parties include CD&R, a private equity investment firm, and Stone Point, which targets investments in the financial services industry (Page 2).
- The Target, Truist Insurance Holdings, is identified as a US-focused insurance broker and a subsidiary of Truist Financial Corporation (Page 3).

M.10398 – DNB / DANSKE BANK / OP / SB1 / EIKA / BALDER ...

Case Background

- The context does not specify any allegations made in this case. (Page 1)
- There are no specific companies being accused of wrongdoing mentioned in the provided information. (Page 1)

- The year of case initiation is not indicated in the context. (Page 1)
- There is no mention of any violations or how they were conducted in the provided information. (Page 1)

Case Progression

- **Case Initiation:** The case is initiated with the notification of the contemplated merger involving Vipps AS, MobilePay A/S, and Pivo, which is identified as M.10398. This marks the beginning of the merger review process. (Page 1)
- **Preliminary Investigation:** During this phase, the Commission will assess whether there is sufficient evidence to proceed. The focus will be on the competitive effects of the merger in the payment services market. If evidence of potential anti-competitive effects is found, the investigation will continue. (Page 1)
- **Statement of Objections issued:** If the preliminary investigation reveals concerns, a Statement of Objections will be issued to the merging parties, outlining the Commission's concerns regarding the merger's impact on competition. (Page 1)
- **Defense Phase:** The merging parties will have the opportunity to respond in writing within 8–12 weeks and may also participate in an oral hearing to present their defense against the objections raised. This phase allows for the submission of evidence and arguments to counter the Commission's concerns. (Page 1)
- **Commission Decision:** Following the defense phase, the Commission will make a decision. If it finds no infringement, the case will be closed. If commitments are accepted to address competition concerns, the case will also close. However, if an infringement is found, the case will proceed to potential fines or further actions. (Page 1)
- **Company Decision:** After the Commission's decision, the merging parties will decide whether to accept the findings and any imposed fines or to appeal the decision. If they choose to appeal, the case will move to the General Court for further review. (Page 1)

Market Definition

- The market considered in this case is the payment services market, specifically focusing on mobile payment services. (Page 1)
- The merging parties, Vipps AS, MobilePay A/S, and Pivo, are all active in this market, indicating the relevance of mobile payment solutions. (Page 1)
- The process to define the market involved analyzing the activities and offerings of the merging parties to assess their competitive impact. (Page 1)
- Techniques used included evaluating the economies of scale that the merged entity could achieve, which would enhance its ability to innovate and compete. (Page 1)
- The assessment also involved considering the financial capabilities of the merged entity to operate effectively in the rapidly developing European payment services market. (Page 1)

- The merged entity's commitment to offering services on transparent and non-discriminatory terms was a factor in evaluating its market position. (Page 1)
- The involvement of multiple banks and holding companies as notifying parties suggests a comprehensive analysis of market dynamics and competitive landscape. (Page 1)

Legal & Economic Tests

- **Legal Test:** The merger is assessed under Article 3 (1) b cf. Article 3 (4) of the Merger Regulation, which determines whether the concentration falls within the scope of EU merger control. This involves evaluating whether the merger significantly impedes effective competition in the internal market or a substantial part of it. The process includes a thorough review of the parties involved and their market positions. (Page 1)
- **Economic Test:** The economic implications of the merger are analyzed to understand its potential impact on competition within the payment services market. This includes assessing the creation of a market player with economies of scale and the ability to innovate. The process involves examining market shares, competitive dynamics, and potential efficiencies that may arise from the merger. (Page 1)
- **Transparency and Responsibility Test:** The information provided by the notifying parties is made public to enhance transparency, but it is prepared under their sole responsibility. This means that the accuracy of the information is crucial, as the Commission does not verify it and cannot be held accountable for any misleading content. The process involves ensuring that the notifying parties disclose all relevant information accurately. (Page 1)

Conclusion

- The notification concerns a merger between Vipps AS, MobilePay A/S, and Pivo, which aims to create a jointly controlled entity by several banks, enhancing their competitive position in the payment services market (page 1).
- The merging parties are focused on providing mobile payment services and intend to leverage economies of scale to innovate and compete effectively in the European payment services sector (page 1).
- The merged entity will maintain a commitment to offering payment services to consumers and merchants under transparent and non-discriminatory terms (page 1).
- There is no mention of specific test results, remedies, or fines imposed in the provided information regarding this case (page 1).

Case No COMP/M.6848 – AEGON / SANTANDER ...

Case Background

- The allegation made in this case is that the proposed transaction constitutes a concentration within the meaning of Article 3(1)(b) of the Merger Regulation. (Page 5)

- The companies involved in this case are Aegon Spain Holding B.V. and Santander Seguros y Reaseguros, along with their subsidiaries, Santander Vida and Santander Generales. (Page 2)
- The year of case initiation is 2013, specifically on March 27. (Page 2)
- The violation pertains to the potential anti-competitive effects of the merger, as the parties' activities overlap in several market segments of life and non-life insurance. The transaction was conducted through the purchase of shares, which would grant joint control over the aforementioned subsidiaries. (Page 5)
- The proposed transaction raised concerns primarily in two horizontally affected market segments related to life insurance in Spain: investment products and life insurance for individuals. (Page 5)
- However, the assessment concluded that the transaction does not raise competition concerns, regardless of the precise product market definition. (Page 6)

Case Progression

- **Case Initiation** → [CASE_ID]: The case was initiated on 27 March 2013 when the European Commission received a notification regarding the proposed concentration involving Aegon Spain and Santander Seguros, which aimed to acquire joint control over Santander Vida and Santander Generales (Page 2).
- **Preliminary Investigation:** The Commission assessed whether the transaction constituted a concentration under the Merger Regulation. It found that the combined aggregate worldwide turnover of the parties exceeded EUR 5 billion, confirming the EU dimension of the case (Page 4). The investigation did not raise competition concerns, allowing it to proceed without further complications.
- **Statement of Objections issued:** No Statement of Objections was issued in this case, as the preliminary investigation concluded that the proposed transaction did not raise any competition concerns (Page 6).
- **Defense Phase:** Since there were no objections, there was no need for a defense phase involving written responses or oral hearings. The parties did not need to provide additional evidence or arguments to defend against any objections (Page 6).
- **Commission Decision:** The Commission issued a decision on 29 April 2013, concluding that there were no competition concerns associated with the proposed transaction, resulting in a non-opposition decision (Page 1).
- **Company Decision:** Following the Commission's decision, the parties could proceed with the transaction without any further obligations or penalties, effectively ending the case (Page 1).

Market Definition

- The market considered in this case primarily involved the life insurance market in Spain, specifically focusing on investment products and life insurance for individuals. (Page 6)

- The assessment included a competitive analysis of horizontal overlaps in the life and non-life insurance segments, identifying only two affected market segments in relation to life insurance. (Page 6)
- The process for defining the product market involved examining previous decisions in the insurance sector, where distinctions were made between life insurance, non-life insurance, and reinsurance, as well as sub-segmentations within these categories. (Page 6)
- The Commission left the exact product market definitions open, concluding that the proposed transaction did not raise competition concerns regardless of the precise definitions. (Page 7)
- Geographic market definitions were also considered, with the life insurance market generally viewed as national due to differing regulatory frameworks, although the potential for a wider market definition was acknowledged. (Page 8)
- The competitive assessment involved analyzing the combined market shares of the notifying parties, which exceeded 15% in specific segments, but remained limited overall, with significant competition from other market players. (Page 8)
- Barriers to entry were evaluated, indicating that they were relatively low due to factors such as customer switching costs, lack of brand loyalty, and easy access to distribution networks, contributing to the conclusion that the transaction would not harm competition. (Page 8)

Legal & Economic Tests

- **EU Dimension Test:** This test assesses whether the proposed transaction meets the thresholds set out in the Merger Regulation, specifically regarding the combined turnover of the parties involved. In this case, it was determined that the combined aggregate worldwide turnover exceeded EUR 5,000 million, and each party had an EU-wide turnover exceeding EUR 250 million, confirming that the transaction has an EU dimension (Page 5).
- **Competitive Assessment:** This involves analyzing the potential impact of the merger on competition within the relevant markets. The assessment identified horizontal overlaps in the life insurance market, specifically in investment products and life insurance for individuals in Spain. However, it concluded that the transaction does not raise competition concerns, allowing for the exact product market definition to remain open (Pages 5–6).
- **Product and Geographic Market Definition:** This test examines how the relevant markets are defined in terms of products and geography. For life insurance, the geographic market was considered national due to regulatory differences, while the product market could be analyzed as a single market. The exact definitions were left open as the transaction did not raise competition concerns, indicating flexibility in market definitions (Pages 6–7).

Conclusion

- The proposed transaction between Aegon and Santander was concluded to constitute a concentration under Article 3(1)(b) of the Merger Regulation, indicating that it meets the

criteria for scrutiny under EU competition law (Page 5).

- The combined worldwide turnover of the parties exceeded EUR 5 billion, with Aegon Group reporting EUR 19.526 million and Santander Group EUR 82.296 million in 2012, confirming the EU dimension of the transaction (Page 5).
- The transaction primarily affected two horizontal market segments in life insurance: investment products and life insurance for individuals in Spain, which were identified as the relevant markets for competitive assessment (Page 5).
- The Commission determined that the proposed transaction did not raise any competition concerns, allowing for the exact definitions of product and geographic markets to remain open without necessitating further investigation (Pages 6 and 7).
- No remedies or fines were imposed as the transaction was cleared without opposition, indicating that the Commission found no significant risk of anti-competitive effects arising from the merger (Page 1).
- The decision was published on 29 April 2013, and the transaction was approved under Article 6(1)(b) of the Merger Regulation, signifying non-opposition from the Commission (Page 1).

What other questions do you have?